



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3128 (EXTENSION)
FIRST REVISION July 13, 1978

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 3128 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1999. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

for 

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/28/97
(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

March 3, 1997



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 3128
(First Revision)

1. Walter Kidde and Company, Incorporated, Belleville, New Jersey, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a Class C explosive and a liquefied non-flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification cylinder, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Department of Defense, Washington, D.C. - PTE-1

2. BASIS. This exemption is based on Walter Kidde and Company, Incorporated's application dated April 28, 1978, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Department of Defense's application dated April 27, 1978.

3. HAZARDOUS MATERIALS (Descriptor and class). Cool gas generator containing an explosive power device, Class C and a compressed gas containing 7.39-pounds of carbon dioxide, and .641-pounds of alcohol in one assembly.
4. PROPER SHIPPING NAME (49 CFR 172.101). Compressed gas, n.o.s.
5. REGULATION AFFECTED. 49 CFR 173.304, 175.3.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, and cargo-only aircraft.
7. SAFETY CONTROL MEASURES. Packaging prescribed consists of a welded cylinder measuring 5.5 inches outside diameter by 18.5 inches long, filled with 7.39 pounds of carbon dioxide and .641 pounds of alcohol and into one end of which is welded a cylindrical chamber, housing a propellant charge designated AK14 Model 1, and a Class C electric squib. The cylinder must be designed for a service pressure of 1,800 pounds per square inch and may be charged to a pressure not exceeding 850 pounds per square inch at 70°F. Each cylinder must be tested to a pressure of 6,000 pounds per square inch and have a permanent expansion not exceeding 10-percent of the total expansion. Further, the cylinder must have a burst pressure of not less than 8,000 pounds per square inch. Cylinders must be hydrostatically retested every 3 years at a pressure of 6,000 pounds per square inch and be removed from services if the permanent expansion exceeds 10-percent of the total expansion and after the cylinder has been discharged 15 times. One charged and filled completed assembly

in addition to one extra propellant charge must be packaged in an outside DOT Specification 12H65 corrugated fiberboard box. Completed unit must otherwise be fabricated and tested in accordance with details included in Walter Kidde and Company, Incorporated's drawings numbered 891936, 891937, and 891942 on file with the Office of Hazardous Materials Regulation (OHMR).

8. SPECIAL PROVISIONS.

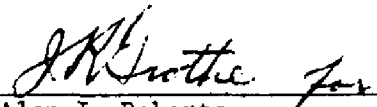
a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel, aircraft used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. June 30, 1980.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

13 JUL 1978

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: B of E, USCG, FAA, FHWA, FRA, Parties of Record.